5. **Democratic fears:** (Is a profusion of public interest litigation nurturing democracy or depleting its potential for the future?)

6. **Biographic fears:** (What would be my place in national affairs after superannuation if I overdo this kind of litigation?)

JUDICIAL ACTIVISM VS. JUDICIAL RESTRAINT

 **Meaning of Judicial Restraint**

Judicial activism and judicial restraint are the two alternative judicial philosophies in the United States. Those who subscribe to judicial restraint contend that the role of judges should be scrupulously limited; their job is merely to say what the law is, leaving the business of law-making where it properly belongs, that is, with the legislators and the executives. Under no circumstances, moreover, should judges allow their personal political values and policy agendas to colour their judicial opinions. This view holds that the 'original intent' of the authors of the constitution and its amendments is knowable, and must guide the courts.[8]

 **Assumptions of Judicial Restraint**

In the USA, the doctrine of judicial restraint is based on the following six assumptions[9]:

1. The Court is basically undemocratic because it is non-elective and presumably non-responsive to the popular will. Because of its alleged oligarchic composition the court should defer wherever possible to the 'more' democratic branches of government.

2. The questionable origins of the great power of judicial review, a power not specifically granted by the Constitution.

3. The doctrine of separation of powers.

4. The concept of federalism, dividing powers between the nation and the states requires of the Court deference toward the action of state governments and officials.

5. The non-ideological but pragmatic assumption that since the Court is dependent on the Congress for its jurisdiction and resources, and dependent on public acceptance for its effectiveness, it ought not to overstep its boundaries without consideration of the risks involved.

6. The aristocratic notion that, being a court of law, and inheritor and custodian of the Anglo–American legal tradition, it ought not to go too far to the level of politics—law being the process of reason and judgment and politics being concerned only with power and influence.

From the above, it is clear that all the assumptions (except the second dealing with the judicial review) hold good in the Indian context too.

 **Supreme Court Observations**